INDIAN LAW & DEALMAKING · 30 JULY 2026

Five moves shaping the board now.

- A moratorium shields the *company*, not the people who ran it
- The SFIO probe into *Vivo India* is put on hold
- Bombay: freezing a bank account is *not routine* relief
- A 157 crore highway award is *trimmed*, not torn up
- A related-party lender cannot be *washed clean* by a later cap-table

SWIPE →

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INSOLVENCY · SUPREME COURT

A moratorium shields the company, not the people who ran it

In Tejas J. Shah v. Mantri Technology Constellations, the Supreme Court on 27 July held that the Section 14 IBC moratorium protects only the corporate debtor, so consumer complaints can proceed against promoters and directors as co-respondents.

NEXT

THE READ

Promoter conduct and personal exposure stay live while the company sits behind the moratorium. The corporate shield is not a personal one.

CORPORATE · SUPREME COURT

02 / 05

The SFIO probe into Vivo India is put on hold

The Supreme Court on 29 July stayed the Serious Fraud Investigation Office proceedings against Vivo India, pausing the investigation while the jurisdiction and process questions are heard.

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For a company under investigation, a stay buys the one thing enforcement pressure takes away: time to litigate the frame before the frame hardens.

ARBITRATION · BOMBAY HC

Freezing a bank account is not routine interim relief

The Bombay High Court held that freezing bank accounts cannot be treated as routine interim relief under the Arbitration Act; a freeze of operating accounts needs a higher threshold and real justification.

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The aggressive account freeze is getting harder to win. Build your security at the drafting table, escrows and charges, not from a Section 9 emergency.

ARBITRATION · ALLAHABAD HC

A 157 crore highway award is trimmed, not torn up

The Allahabad High Court partly set aside an arbitral award of about Rs 157.57 crore against the U.P. State Highways Authority, modifying the quantum rather than annulling the award wholesale.

THE READ

Section 34 is not all or nothing. A court can scrutinise the numbers and still preserve the contractual findings, which reshapes how you attack and defend an award.

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INSOLVENCY · NCLT

A related-party lender cannot be washed clean by a later cap-table

The NCLT Chandigarh held that a later change in shareholding cannot retrospectively cleanse a creditor's related-party status; that status is tested at the relevant insolvency reference point, not engineered away afterward.

THE READ

De-tagging a friendly lender through a post-facto transfer does not restore its committee vote. The relationship test bites at the relevant time, and keeps biting.

NEXT

THE THROUGH-LINE

One thread runs through today's five: the courts kept *drawing lines*. On who a shield actually protects, on what an interim order may reach, on when a status is fixed, on how far a set-aside goes. *Reach too far, and the line moves against you.*

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